

		Plaintiff shall file her Second Amended Complaint by 08/14/26 and serve it in compliance with the Code. Plaintiff is ordered to give notice of the ruling. CMC set 11-2-26 at 9:00 a.m.
3	Doe vs. Anaheim Elementary School District 2025-01498911	Demurrer to Complaint / Motion to Strike (1) DEMURRER Defendant Anaheim Elementary School District’s (“AESD”) demurrer to Plaintiff Jane Ark Doe’s Complaint is overruled. First, Defendant’s demurrer is untimely. In addition, it failed to meet and confer prior to filing its demurrer pursuant to Code Civ. Proc., § 430.41. Defendant was served with the Complaint on 12/4/25. (ROA 14.) The demurrer was filed and served on 3/2/26, well past the initial 30-day deadline and the subsequent automatic 30-day extension pursuant to § 430.41.) In Defense counsel’s declaration filed on 1/2/26 regarding the automatic 30-day extension, he acknowledges both that he is required to meet and confer with Plaintiff’s counsel and also that the new deadline for filing Defendant’s motions would be on February 4, 2026. (ROA 25, Kostrenich Decl., ¶¶ 5-8.) Yet without explanation for the lateness or the failure to meet and confer, Defendant did not file its demurrer until nearly one month later, on March 2, 2026. No <u>timely</u> reply brief was filed offering any explanation for these procedural defects. The Court has discretion to either consider the demurrer, or overrule the demurrer because it is untimely. (See <i>Jackson v. Doe</i> (2011) 192 Cal.App.4th 742, 749 (demurrer was only filed 8 days after the expiration of the 30-day deadline).) Because Defense counsel knowingly filed and served the demurrer late – 26 days after the deadline that was already extended once – the Court will exercise its discretion to overrule the demurrer on this ground. The deadline was extended by statute due to Defendant’s admitted inability to meet and confer; and yet, Defendant still

proceeded in filing its demurrer late, without meeting and conferring despite having almost 60 days to do so.

The Court additionally finds that the demurrer lacks merit, as set forth below.

1st-4th causes of action for negligence (negligence; negligent supervision; negligent hiring/retention; and negligent failure to warn, train or educate)

Defendant first argues that because the school where Plaintiff went was a charter school, it cannot be liable for Plaintiff's injuries while there. This is not supported by legal authority.

Defendant cites to *Today's Fresh Start, Inc. v. Los Angeles Cnty. Off. of Educ.* (2013) 57 Cal. 4th 197, and admits that charter schools are subject to public oversight, as chartering authorities are required to monitor schools' fiscal condition and academic performance and are authorized to investigate whenever grounds for concern arise. (Ed. Code, §§ 47604.32, 47604.33, 47604.4, 47604.5, 47605, subd. (k), 47607, subd. (a).) (*Today's Fresh Start, Inc. v. Los Angeles Cnty. Off. of Educ.* (2013) 57 Cal. 4th 197, 206.)

Plaintiff alleges sufficient facts to support her negligence-based causes of action.

In particular, Plaintiff alleges in the Complaint that AESD "was the primary entity owning, operating, and controlling Vibrant Minds Charter School" and had "decision-making power over Vibrant Minds Charter School, and its activities and behavior of its employee and agent RANDY ROMAN." (Complaint, ¶ 5)

Plaintiff alleges AESD was vicariously liable for the actions of its employees, including Defendant Roman. "While public entities cannot be held directly liable for common law negligence, they can be held vicariously liable for the negligence of their employees acting within the scope of employment." (*Gibbs v. County of Humboldt* (2026) 120 Cal.App.5th 565, 574.) In addition, a school district can be vicariously liable for its employees' ineffective supervision. (See *Cleveland v. Taft Union High School Dist.* (2022) 76 Cal.App.5th 776, 799.)

Plaintiff also adequately alleges that Defendant had actual or constructive knowledge of Roman's improper conduct. (See *Roe v. Hesperia Unified School District* (2022) 85 Cal.App.5th 13, 26 (court held that "school administrators have a duty to protect students from

sexual abuse by school employees, even if the school does not have actual knowledge of a particular employee's history of committing, or propensity to commit, such abuse.").

In ¶¶ 29-31 of the Complaint, Plaintiff alleges that were reports of sexual abuse or misconduct involving Defendant Roman, which were ignored, as well as other red flag behavior.

These allegations support constructive notice and foreseeability at the pleadings stage.

5th cause of action for sexual harassment and abuse in educational setting, Ed. Code, § 220

Ed. Code, § 220 provides that “[n]o person shall be subjected to discrimination on the basis of disability, gender, gender identity, gender expression, nationality, race or ethnicity, religion, sexual orientation, or any other characteristic that is contained in the definition of hate crimes set forth in Section 422.55 of the Penal Code, including immigration status, in any program or activity conducted by an educational institution that receives, or benefits from, state financial assistance, or enrolls pupils who receive state student financial aid.”

Defendant again argues that Plaintiff fails to sufficiently plead actual or constructive knowledge of the harassment or abuse, which is required to hold AESD liable.

For the same reasons stated above with respect to the 1st-4th causes of action, the fifth cause of action is adequately pled.

6th cause of action for Intentional Infliction of Emotional Distress

Plaintiff alleges that “Defendants’ conduct toward Plaintiff, as described herein, was outrageous and extreme,” in allowing Defendant Roman to have access to students and failing to supervise and prevent his wrongful acts. (Complaint, ¶¶ 91-93.)

Defendant argues that this cause of action cannot be asserted against a public employee as it is a common law tort, inapplicable to a public entity or its employees, as there must be a proper statutory basis imposing a duty.

Gov. Code, § 815.2 provides that a public entity may be held liable for injury proximately caused by an act or omission of its employee(s).

While Plaintiff cannot assert direct liability against Defendant AESD (that is not based on a specific statute), it can allege vicarious liability; i.e., that Defendant is vicariously liable for the actions of its employees which may or may not constitute intentional infliction of emotional distress.

In ¶ 5 of the Complaint, Plaintiff alleges, “Defendant purposely conducts substantial educational business activities in the State of California, and was the primary entity owning, operating, and controlling Vibrant Minds Charter School and the activities and behavior of its employees, agents, and all other personnel and employees, including supervisory personnel assigned to Vibrant Minds Charter School. Plaintiff is also informed and believes that Defendant owns, controls, and has decision-making power over Vibrant Minds Charter School, and its activities and behavior of its employee and agent RANDY ROMAN, and supervisory panel assigned to Vibrant Minds Charter School.”

These are adequate vicarious liability claims.

7th cause of action for sexual harassment pursuant to Civ. Code, § 51.9

Civil Code section 51.9 provides a cause of action for sexual harassment against a “person” who is in a “business, service, or professional relationship” with the plaintiff. (Civ. Code, § 51.9(a)(1).) The statute identifies a nonexclusive list of persons with whom a relationship may exist, including physicians, landlords, and teachers. (*Id.*, subd. (a)(1)(A)–(I).) Damages are “awarded as provided by subdivision (b) of [Civil Code] Section 52.” (Civ. Code, § 51.9(b).)

Defendant argues that it cannot be held liable because it is not a “person.”

In *Thomas v. Regents of University of California* (2023) 97 Cal. App. 5th 587, the court held that a public entity may be held vicariously liable for sexual harassment under Civil Code § 51.9 based on a theory of ratification and reversed the trial court’s sustaining of UC Berkeley’s demurrer. “An employer’s “failure to investigate or respond to charges that an employee has committed an intentional tort” or “failure to discharge the employee may be evidence of ratification” by the employer.” (*Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 619.)

Thus, it would seem that based on *Thomas*, § 51.9 can be applied to public entities under a ratification theory.

Here, the Complaint alleges that AESD and Vibrant Minds received complaints about Roman and observed red flags but intentionally ignored them and retained him in employment. (Complaint, ¶¶ 29-31, 102). At the pleadings stage, this is sufficient.

(2) MOTION TO STRIKE

Defendant Anaheim Elementary School District's ("AESD") motion to strike portions of Plaintiff Jane Ark Doe's Complaint is denied.

As with its demurrer, Defendant's motion to strike is untimely. In addition, it failed to meet and confer pursuant to Code Civ. Proc., § 435.5.

Defendant was served with the Complaint on 12/4/25. (ROA 14.) The motion to strike was filed and served on 3/2/26, well past the initial 30-day deadline and the subsequent automatic 30-day extension pursuant to § 435.)

In Defense counsel's declaration filed on 1/2/26 regarding the automatic 30-day extension, he acknowledges both that he is required to meet and confer with Plaintiff's counsel and also that the new deadline for filing Defendant's motions would be on February 4, 2026. (ROA 25, Kostrenich Decl., ¶¶ 5-8.)

Yet without explanation for the lateness or the failure to meet and confer, Defendant did not file its motion until nearly one month later, on March 2, 2026. No timely reply brief was filed offering any explanation for these procedural defects.

Again, because Defense counsel knowingly filed and served the motion to strike nearly 30 days late, the motion is denied.

The Court alternatively/additionally denies the motion to strike on the merits.

Defendant moves to strike ¶ 12 (alter ego allegations), ¶ 13 (agency and ratification allegations), Plaintiff's prayer for statutory damages, and Plaintiff's prayer for attorney fees from the Complaint.

Defendant first argues that because it is a public entity and not a for profit enterprise like a corporation, it cannot be subject to alter ego liability. This is not supported by the law. In *Cam-Carson, LLC v. Carson Reclamation Authority* (2022) 82 Cal.App.5th 535, 548, the court held that "the alter ego doctrine may be applied to a government

entity in a case where the facts justify an equitable finding of liability.” Defendant states similar arguments with respect to joint venture or agency allegations. Notwithstanding the viability of these claims, Defendant does not move to only strike these particular words from the Complaint. Defendant moves to strike entire paragraphs. A finding that one term within those paragraphs is improper (e.g., joint-venturers, or shareholders) does not justify striking the entire paragraph, especially when Plaintiff uses the conjunctive “or” indicating that she is not necessarily claiming all Defendants were all of these things.

Plaintiff alleges liability based on ratification in ¶ 13 of the Complaint. This is sufficient at the pleading stage. There is no legal authority that holds that a school district cannot have ratified improper conduct resulting in its liability.

With respect to the prayer for statutory damages, Plaintiff requests “any appropriate statutory damages.” (Complaint, Prayer, ¶ 3.) Defendant does not show how this request is irrelevant, false or improper. Plaintiff does not appear to be requesting punitive damages against Defendant AESD.

Plaintiff requests “attorney’s fees pursuant to California Code of Civil Procedure sections 1021.4, 1021.5, et seq., 52, et seq., or as otherwise allowable by law” in the prayer for relief, ¶ 6.

Plaintiff’s 7th cause of action is based on Civil Code, § 51.9. Specifically, Subd, (a)(3)(b) states that damages shall be awarded pursuant to § 52(b) which does provide for attorney fees.

Thus, while Plaintiff’s reference to other statutes may not be supported by the allegations, Plaintiff’s prayer for attorney fees based on Civ. Code, § 52 et seq., is not improper, and thus the general attorney fee request should not be stricken.

Defendant is ordered to answer within 30 days notice of this ruling.

Plaintiff shall give notice of both rulings.

Case Management Conference

11-2-26 at 9:00 a.m.